Bambuddy Orders Terms

https://get.bambuddy.cool/orders-terms.html

These terms apply to the Bambuddy Orders subscription, Starter and Pro. Bambuddy itself is free software under the AGPL and costs nothing. Deutsche Fassung · Data processing agreement

Section 1 — Provider, contracting parties, scope

(1) The provider of the Bambuddy Orders software is Martin Ziegler, Warschauer Str. 12, 10243 Berlin, email support@bambuddy.cool ("Provider").

(2) Our order process is conducted by our online reseller Paddle.com. Paddle.com is the Merchant of Record for all our orders: Paddle.com Market Limited, or in the United States Paddle.com Inc. and in Canada Paddle.com (Canada) Ltd. ("Paddle"). Paddle is therefore the seller and the Customer's contracting party for ordering, payment, invoicing, VAT and refunds, and answers all inquiries on those matters. Paddle's Buyer Terms govern them.

(3) These Terms govern what the subscription consists of and the conditions under which the Software may be used. In case of conflict, Paddle's Buyer Terms prevail for ordering and payment.

(4) **Business customers only.** The subscription is offered exclusively to businesses within the meaning of section 14 of the German Civil Code that operate an online shop in the course of their trade or self-employed profession. By placing the order, the Customer confirms that they are acting as a business.

(5) The Customer's own terms do not apply, even if not expressly rejected.

Section 2 — Definitions

Software means the Provider's proprietary program Bambuddy Orders in the form of a container image, including its user interface, documentation and updates.

Bambuddy means the free software Bambuddy under the GNU Affero General Public License. Bambuddy is **not** part of the Software.

Installation means a running instance of the Software with its own database.

Shop means an online shop of the Customer on a shop system supported by the Software.

Licence Key means the string assigned to the Customer on purchase.

Licence Service means the Provider's service with which an Installation is activated and from which it retrieves its licence status.

Etsy Gateway means the Provider's service through which the Software connects to Etsy (Section 6(5)).

Term means the period paid for under Section 7.

Section 3 — What the subscription includes

(1) For the duration of the Term, the subscription includes:

a. the right to run the Software on **one** Installation (Section 5),

b. obtaining the Software and its updates from the Provider's distribution source,

c. support as set out in Annex A.

(2) The Software takes in paid orders from the Customer's Shop, creates print jobs for them in Bambuddy, tracks the printing and reports the shipment back to the Shop. The functionality in detail is set out in the product description at the time of the order.

(3) The subscription is offered in two editions that differ by the number of connected Shops. Which edition has which limits is set out in the product description during the order process.

(4) The Customer runs the Software themselves, on their own hardware or their own servers. The Provider runs no Installation for the Customer and has no access to it.

Section 4 — What the subscription does not include

(1) **No rights in Bambuddy.** Bambuddy is free software and is available free of charge independently of this subscription. The subscription grants no rights in Bambuddy and restricts none of the rights granted by its licence. Bambuddy is a prerequisite for running the Software; the minimum version is stated in the documentation.

(2) No undertaking as to third-party services, in particular not as to the interfaces, terms, fees and availability of the shop system, of the printers and of their firmware. If a third party changes its interfaces or terms, a feature may cease to exist or a channel may no longer be offered.

(3) No undertaking that a reported fault will be fixed within any particular period.

(4) No availability guarantee for the Licence Service or the Etsy Gateway. The effect of their unavailability is set out in Section 6(3) and (5).

(5) No accounting, no invoicing to the Customer's buyers and no processing of payments. The Software takes in only orders that have already been paid.

Section 5 — Licence to use the Software

(1) For the duration of the Term, the Customer receives a simple, non-exclusive and non-transferable right to run the Software on one Installation for its intended purpose for the Customer's own Shops.

(2) Without the Provider's prior consent, the Customer must not:

a. copy the Software, except as necessary for its intended operation and for backup,

b. pass on, rent out or make publicly available to third parties the Software, the Licence Key or access to the distribution source,

c. run the Software for third parties' Shops, in particular as a service for other merchants,

d. circumvent or tamper with licence checking,

e. decompile, reverse engineer or modify the Software,

f. remove copyright, licence or provenance notices.

(3) Mandatory rights under sections 69d and 69e of the German Copyright Act are unaffected.

(4) The Software is a separate program. It connects to Bambuddy exclusively through Bambuddy's application programming interface and contains no Bambuddy source code.

Section 6 — Licence Key, activation, transmitted data

(1) The Customer receives the Licence Key on purchase and uses it to activate an Installation. A Licence Key is valid for one Installation at a time. To move to a different Installation, the Customer releases the current one in the Software ("Remove from this install") and activates the new one.

(2) The Software contacts the Licence Service on activation and thereafter approximately every six hours. Only the following are transmitted: a random installation identifier, the Licence Key once on activation, thereafter an installation token issued by the Licence Service, the program version, and the domain of the first connected Shop. The Licence Key is not stored in the Installation. Except through the Etsy Gateway (subsection 5), **no order data, buyer data, print data, and no credentials for the Shop or for Bambuddy are transmitted to the Provider.** The Shop's domain is used to match support requests and to detect use contrary to Section 5(2).

(3) If the Licence Service cannot be reached, the Software continues to take in new orders for seven days after the last successful check.

(4) The Software and its updates are obtained from the Provider's distribution source, which checks the Licence Key on every download.

(5) **Etsy.** The Software connects to Etsy with the Provider's Etsy app, which the Customer authorises for their Etsy shop. Etsy requires the app's key on every request, and the key cannot be handed out with the Software, so the connection runs through the Etsy Gateway. The Etsy Gateway passes each request of the Installation on to Etsy with the app's key and Etsy's answer back to the Installation; it only permits the requests the Software needs. Etsy's answers include the orders with the buyer data Etsy provides; the Etsy Gateway passes them through without storing them. It keeps, per Licence Key, the number of each Etsy shop reached through it and when it was first and last used. The Customer's Etsy access tokens pass through it when they are issued or renewed and are not kept there. If the Etsy Gateway cannot be reached, Etsy orders are taken in once it can be reached again.

(6) The credentials for the Shop remain encrypted in the Customer's Installation.

Section 7 — Term, renewal, termination

(1) The Term is twelve months from issue of the Licence Key.

(2) The contract renews for successive periods of twelve months unless terminated before the end of the Term.

(3) Termination is effected through the Paddle buyer portal linked in the subscription confirmation, through paddle.net, or in text form to support@bambuddy.cool. It takes effect at the end of the current Term.

(4) The right to terminate for cause is unaffected.

Section 8 — Effect of the Term ending

(1) When the Term ends, the Software **takes in no new orders**. It displays a notice to that effect on every page.

(2) **Nothing that already exists is locked or deleted.** The Customer can continue to track orders already taken in, have them printed and report them as shipped. Bambuddy, the printers and the data in the Installation are unaffected.

(3) When the Term ends, access to updates and support end.

(4) If the subscription is resumed, the Software takes in new orders again from the next check.

Section 9 — Suspension

(1) The Provider may suspend a Licence Key where:

a. the Licence Key or access to the distribution source has been passed on contrary to Section 5(2),

b. the Software is being run for third parties' Shops contrary to Section 5(2)(c),

c. licence checking has been circumvented,

d. payment has been charged back, refunded or not made.

(2) Except in the case of subsection (1)(d) and in cases of manifest abuse, the Provider will allow 14 days to respond before suspending.

(3) A suspension has the same effect as the end of the Term under Section 8(1) and (2). It is lifted once its cause no longer applies; the lifting takes effect from the next check.

Section 10 — Customer obligations and responsibilities

(1) Operation, hardware, network, backup, updating of Bambuddy and of the Software, and the security of the Installation are the Customer's responsibility.

(2) **Shop system.** Where the shop system requires it, the Customer creates the app for the connection in their shop system themselves; for Etsy, the Customer authorises the Provider's Etsy app instead (Section 6(5)). The Customer is responsible for the permissions granted and for compliance with the terms of their shop system.

(3) **Checking jobs.** The Customer checks the print jobs and shipment notifications created by the Software to an extent appropriate to their business. The Software is a tool; responsibility for fulfilling orders towards the Customer's buyers lies with the Customer.

(4) **Buyer data.** The Customer is the controller under data protection law for the processing of their buyers' data in the Installation. For an order, the Software stores neither the buyer's name, nor email address, nor postal address, but it does store the delivery country, the amount and the personalisation fields of the order line.

(5) **Printer operation.** 3D printers are heated machines with moving parts. Their siting, operation, supervision and fire safety are exclusively the Customer's responsibility. The Software creates print jobs; it does not replace supervision.

Section 11 — Prices, payment, taxes

(1) The prices stated in the Paddle checkout apply. Payment, invoicing and VAT are governed by Paddle's Buyer Terms as seller (Section 1(2)).

(2) Prices are net of VAT, which is added at the statutory rate; within the European Union, supplies to a customer providing a valid VAT identification number are invoiced under the reverse-charge procedure.

(3) **Refund.** The Provider will have the full price refunded if the Customer asks for it within 14 days of the first purchase or of a renewal charge, without giving a reason. Refunds are issued by Paddle; with the refund the Licence Key is suspended (Section 9(1)(d)).

Section 12 — Defects

(1) The Provider supplies the Software in a version that substantially conforms to the product description, and keeps it in that condition through updates during the Term.

(2) The Customer reports defects with a description of the fault symptoms. The Provider remedies defects, at its option, by an update or a workaround.

(3) The limitation period for defect claims is twelve months. This does not apply to claims for damages under Section 13(1).

(4) Limitations caused by changes to the shop system, the printers or their firmware, or by an unsupported version of Bambuddy, are not defects (Section 4(2)). The Provider will make efforts to adapt the Software to such changes.

Section 13 — Liability

(1) The Provider is liable without limitation for intent and gross negligence, for injury to life, body or health, under the German Product Liability Act, and to the extent of any guarantee given.

(2) For ordinary negligence the Provider is liable only for breach of a material obligation whose performance is essential to the proper execution of the contract and on whose observance the Customer may routinely rely, and then limited in amount to the damage typical of this type of contract that was foreseeable when the contract was concluded, up to a maximum of the fees paid for the last twelve months.

(3) Liability is otherwise excluded, in particular for lost profit, lost revenue and claims by the Customer's buyers.

(4) For loss of data the Provider is liable only up to the cost of restoration that would have been incurred had the Customer taken proper and regular backups.

(5) The Provider is not liable for damage arising from the operation of the printers (Section 10(5)), nor for impairments caused by third-party services (Section 4(2)).

(6) The above limitations also operate in favour of the Provider's agents.

Section 14 — Data protection

(1) The Provider processes the data under Section 6(2) as an independent controller for the purpose of performing this contract. Details are set out in the privacy notice at https://bambuddy.cool/privacy-policy.html.

(2) If the Customer connects an Etsy shop, the Provider processes the buyer data passing through the Etsy Gateway (Section 6(5)) on the Customer's behalf. For this purpose the Provider's data processing agreement under Article 28 GDPR, published with these Terms, forms part of these Terms.

(3) If the Customer transmits personal data in the course of support — for instance in logs or screenshots — the parties will on request conclude a data processing agreement under Article 28 GDPR.

Section 15 — Changes to these Terms

The Provider may amend these Terms with effect for the future. Amendments will be notified to the Customer in text form at least six weeks before they take effect. If the Customer does not object before they take effect, the amendments are deemed accepted; the notification will say so expressly. If the Customer objects, either party may terminate with effect from the date the amendment would take effect.

Section 16 — Final provisions

(1) German law applies, excluding the UN Convention on Contracts for the International Sale of Goods.

(2) The place of jurisdiction for all disputes is Berlin, provided the Customer is a merchant, a legal person under public law, or a public-law special fund.

(3) **Language versions.** These Terms exist in a German and an English version. For customers established in Germany, Austria or Switzerland the German version governs; for all other customers the English version governs.

(4) Declarations under these Terms require text form.

Annex A — Scope of support

Channel.

- Questions about using the Software and faults: the public issue tracker of the Bambuddy project, https://github.com/maziggy/bambuddy/issues, stating that the request concerns Bambuddy Orders. Requests there are public; the Customer must not post the Licence Key, order or buyer data or other confidential data in them.
- The Licence Key, the subscription and refunds: by email to support@bambuddy.cool.
- Telephone, chat and remote access to the Customer's systems are not part of the subscription.

Service hours. Monday to Friday, 09:00 to 17:00 CET/CEST, excluding public holidays at the Provider's seat.

Response time. Normally on the next working day, and within two working days at the latest, from receipt within service hours. What is promised is a response, not a fix.

Absence. The Provider may suspend the response time for up to 15 working days per calendar year in total. Planned absences are announced at least seven days in advance by email, unforeseen ones without undue delay.

Covered. Setting up the Software and its connection to the Shop and to Bambuddy in accordance with the documentation; faults in the Software; updates; Licence Keys and moving to a different Installation.

Not covered. Bambuddy itself, where the fault is not caused by the Software (faults in Bambuddy are handled in the public project); setting up and designing the Shop; printers, firmware and print results; the Customer's servers, Docker, network and internet connection; advice on shipping, taxes and the law governing running a shop.

Languages. German and English.

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